INFO 4940/5940
U.S. Copyright Law
Instructor: Mike Priehs

Mid-Term Examination
Spring 2025

Instructions

This is an "open book" examination. You may read, watch, or rely on any material you wish, including supporting materials that are relevant, but not necessarily shared or discussed in the course.

The exam is due on Saturday, March 8 at 11:59pm. If you need an extension, please let me know.

You will submit your answers via Canvas. Under "Assignments," you will find a place to submit your final examination.

Please submit your file as a Word document. Please use 12-point, Times New Roman font, double-spaced. Quick tip: You can copy the questions below and paste them into a new Word document that you can submit via Canvas.

The exam consists of 10 **short answer** questions. You may be able to answer some of the questions with a sentence or two. Others may require a paragraph or more. Use examples from cases we have read when appropriate.

Mid-Term Questions

1. According to the U.S. Constitution, what is the purpose of copyright and what do copyright laws attempt to balance (hint: scales of justice)?

2. List the exclusive rights that make up copyright protection.

3. In your own words, describe the amount of "creativity" required for a work to have copyright protection.

4. Copyrighted works, or the subjects of copyright, fall within one of eight categories. Please list all eight categories. Additionally, identify the location in the U.S. code where these categories are defined.

5. What are the two tests used by courts to determine if a fictional character has copyright protection? Briefly describe each of them.

6. Identify and briefly describe the two types of copyrights in music. Explain how musicians can record a cover song (i.e., a new recording by a musician other than the original performer or composer of the song).

7. Very briefly describe the main characteristics of each of the following theories in relation to copyright: Fairness, Personality, Welfare, and Cultural.

8. Define the "scenes-a-faire" doctrine and provide an example that was **not** discussed in class.

9. What does the case Lindsay v. RMS Titanic teach us about the role of the author in determining authorship?

10. Which two conditions are necessary to establish joint authorship?